
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 66 (S.123). An act relating to miscellaneous changes to laws related to motor vehicles

Subjects: Motor vehicles; fees; veterans; taxes; Department of Motor Vehicles; number plates; drunken driving; tinted windows; nondriver identification cards; plug-in electric vehicles (PEVs); documentation of anatomical gift; disability placards; registration certificates; learner's permits; licensing examinations; commercial driving instructors; non-Real ID; odometer alteration; convictions; bulk electronic record fees; truck registration fees; operator's licenses and privilege cards; excessive speed

This act amends the definition of a pleasure car to include plug-in electric, battery electric, and plug-in hybrid vehicles and updates the definition of all-terrain vehicle to include wider vehicles. This act makes various technical changes to provisions related to convictions for certain traffic offenses, prohibited alteration of odometers, speeding, and operating a vehicle under the influence. This act also provides that a notice of intent to suspend an operator's license for operating a vehicle under the influence shall not serve as a temporary license.

This act clarifies the documents that need to be provided when renewing an enhanced driver's license and permits individuals applying for a nondriver identification card to elect to be an organ donor. This act repeals the requirement that placards for volunteers who transport individuals with a disability be marked "volunteer driver." This act provides that operator's privilege cards shall bear the phrase "non-Real ID." This act permits individuals to renew an operator's license, operator's privilege card, or nondriver identification card early and provides for prorated fees for early renewals.

This act waives certain fees related to learner's permits, operator's licenses, and nondriver identification cards for individuals under 23 years of age who are transitioning out of the State foster care system and provides reduced fees for operator's licenses for individuals receiving Supplemental Security Income and Social Security Disability Income. This act also waives the electric vehicle (EV) infrastructure and emissions fees for veterans who received financial assistance from the U.S. Department of Veterans' Affairs to purchase an adaptive vehicle and waives the EV infrastructure fee for EVs owned by the State, municipalities, and volunteer fire and rescue organizations. This act also makes technical changes to the schedule of fees for the registration of trucks. This act permits the Commissioner of Motor Vehicles to accept proof other than a returned registration or plates as proof of a cancelled registration for purposes of refunding the registration fee for a destroyed vehicle.

This act requires commercial driver's license (CDL) learner's permits to include a photo of the permit holder. This act also prohibits a deferred sentence for CDL learner's permit holders who commit certain traffic violations and amends the violations for which a deferred sentence could be granted to an individual with a CDL or CDL learner's

permit or who is operating a commercial vehicle. This act also establishes experience requirements for commercial motor vehicle behind the wheel and theory instructors.

This act permits the Commissioner of Motor Vehicles to waive the examination requirement for holders of a junior operator's license in another state who are applying for a license in Vermont for the first time. This act also requires the Department of Motor Vehicles to begin charging a \$29.00 scheduling fee for each operator's license road test on or before July 1, 2026 and permits the fee to be waived if the road test is canceled more than 48 hours in advance or for good cause. This act also amends the experience requirements for motorcycle instructors.

This act updates the reference used to determine the clean trade-in value of a used vehicle for purposes of the purchase and use tax and permits the Commissioner of Motor Vehicles to develop a process for determining the value of vehicles that do not have a clean trade-in value. This act adds a definition of mail for purposes of the purchase and use tax and requires the Commissioner of Motor Vehicles to establish appeals procedures for the purchase and use tax and to create education and outreach materials regarding the appeal process. This act also requires that requests for a purchase and use tax refund must be submitted within one year of paying the tax and requires that requests for a fuel tax refund must be submitted within 12 months of paying the tax. This act requires the Commissioner of Motor Vehicles to submit a report regarding the process for determining the taxable cost of a used vehicle for determining the purchase and use tax due and the impact of annual motor vehicle safety and emissions inspections on Vermonters.

The act permits an individual riding a bicycle who is facing a walk signal to make a turn or proceed across a roadway or intersection in the direction of the signal. This act also establishes requirements for the operation of bicycles at bicycle control signals. This act requires the Commissioners of Motor Vehicles and Public Safety to develop education and outreach materials regarding the laws governing the operation of bicycles on roadways and at signalized intersections and requires those materials to include information on the operation of motor vehicles in relation to bicycles.

This act amends the town highway law to clarify that municipalities have authority to maintain legal trails.

Multiple effective dates, beginning on June 12, 2025